

CAPITAL ONE, N.A. v CHRIS PETERSON

23CF14351

PLAINTIFF'S MOTION TO HAVE MATTERS DEEMED ADMITTED

Plaintiff Capital One ("Plaintiff") sued Defendant Chris Peterson ("Defendant") for the collection of a debt. Thereafter, Defendant filed an Answer. Now before the Court is Plaintiff's motion to deem admitted the matters specified in the Plaintiff's Requests for Admission ("RFA").

On or about August 29, 2024, Plaintiff served its first set of discovery: Requests for Admission - Set One ("RFA.") (Declaration of Gregory Parks ("Parks Decl.") ¶ 2, Ex. 1.) On or about October 18, 2024, Plaintiff's counsel attempted a meet and confer by sending the letter to Defendant regarding the outstanding discovery and offering additional time to respond. (Parks Decl. ¶ 4, Ex. 2.) As of the Plaintiff's motion, Defendant has not responded to the letter or provided any responses to the RFA, nor has he filed any opposition to Plaintiff's motion.

Pursuant to Code Civ. Proc. section 2033.280:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, “has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc. § 2033.280(c).)

Defendant has not served any response and has not provided any evidence to the court that the failure is a result of mistake, inadvertence, or excusable neglect.

Accordingly, Plaintiff’s motion is **GRANTED**. All requests are deemed admitted.

The Clerk shall provide notice of the Ruling forthwith. The Court intends to sign the submitted (Proposed) Order.

FORD v GREENHORN GOLF, LLC

23CV47102

PLAINTIFF'S MOTION FOR CONTEMPT

On December 6, 2023, Patricia Ford ("Plaintiff") filed a Complaint against Greenhorn Golf, LLC ("Defendant")¹ seeking damages for nuisance and requesting injunctive relief. On September 16, 2024, the Court granted the Plaintiff's request and ordered that the subject trees and roots be removed within thirty (30) days of the entry of the order, i.e., by October 16, 2024.

Now before the Court is Plaintiff's motion to hold Defendant in contempt. At the time Plaintiff filed the motion, Defendant had not complied with the Court order in any manner. However, Defendant now reports in its opposition that it had the trees and stumps removed on November 22, 2024. Defendant asks the Court to deny Plaintiff's request for sanctions.

Pursuant to Code Civil Procedure section 1209(a)(5), contempt occurs whenever there is "disobedience of any lawful judgment, order, or process of the court." When, as is the case here, the contempt occurs outside of the presence of the Court, "an affidavit shall be presented to the court or judge of the facts constituting the contempt. . . (CCP §1211(a).) Once the affidavit is presented and accepted, the Court may order the offending party to show cause as to why they should not be held in contempt.

"The essential facts to establish contempt for violation of a court order are: 1) the making of the order, 2) knowledge of the order, 3) ability of the respondent to render compliance, and 4) willful disobedience of the order." (*Moore v. Superior Court*, (2020) 57 Cal.App.5th 441, 456.)

Plaintiff has presented the affidavit of her counsel, Eurik O'Bryant. (Declaration of Eurik O'Bryant ("O'Bryant Decl.") ¶ 2.) First, Mr. O'Bryant avers that there was a Notice of Entry of Order and Order Granting Plaintiff's motion for Mandatory Injunction Ordering Defendant to Abate Nuisance." (Id., ¶ 4, Ex. 1.) Second, there is no question that Defendants were aware of the Court's Order. (Declaration of Brian E. Colton ("Colton Decl.") ¶ 3.) Third, Defendant was clearly able to render compliance with the Order because the trees and stumps have been removed, albeit significantly later than ordered by the Court. However, while there is evidence of willful disobedience of the Order as no action was taken for removal by the Court's deadline, there also is evidence of active communication between counsel regarding issues that arose delaying the actual removal, though a bit belatedly, at least initially.

¹ Plaintiff has also sued Does 1-10.